

PARTNERSHIP AND SERVICE-CUM-RENTAL AGREEMENT

This Partnership and Service-cum-Rental Agreement (hereinafter referred to as the "Agreement") is made, entered into and executed on this [Date of Execution] day of [Month], [Year] at [Place of Execution, e.g., Mumbai, Maharashtra].

BY AND BETWEEN

MR. PREET, [Son/Daughter/Husband] of [Father's/Husband's Name], aged about [Age] years, residing at [Complete Address details of MBC 2, e.g., Ghodbunder Road, Thane, Maharashtra, Pin Code] (hereinafter referred to as the "**First Partner**" or "**Service Provider**", which expression shall, unless repugnant to the context or meaning thereof, be deemed to mean and include his heirs, executors, administrators, and permitted assigns) of the **FIRST PART**;

AND

[Full Legal Name of the Second Partner], [Son/Daughter/Husband] of [Father's/Husband's Name], aged about [Age] years, residing at [Complete Residential Address of the Second Partner] (hereinafter referred to as the "**Second Partner**", which expression shall, unless repugnant to the context or meaning thereof, be deemed to mean and include his heirs, executors, administrators, and permitted assigns) of the **SECOND PART**.

The First Partner and the Second Partner are hereinafter collectively referred to as the "Partners" and individually as the "Partner".

WHEREAS:

A. The Partners have agreed to join together as partners to conduct the business of [Description of Partnership Business, e.g., Information Technology services, consultancy, etc.] under the provisions of the Indian Partnership Act, 1932.

B. The First Partner is in lawful possession of and controls the commercial premises situated at [Complete Address of MBC 2] (hereinafter referred to as the "Premises"), and has agreed to provide a portion of the Premises on a rental basis to the partnership firm for its business operations, along with certain infrastructure and administrative services.

C. The Partners desire to reduce the terms and conditions of their partnership, rental, and service arrangement into writing to avoid any future disputes or ambiguities.

NOW, THEREFORE, IT IS MUTUALLY AGREED BY AND BETWEEN THE PARTIES HERETO AS FOLLOWS:

1. NAME AND PLACE OF BUSINESS

The business of the partnership shall be carried on under the firm name and style of **M/S [Name of Partnership Firm]**. The principal place of business of the partnership shall be at **MBC 2, [Complete Address of MBC 2]**, or at such other place or places as the Partners may from time to time mutually decide in writing.

2. COMMENCEMENT AND DURATION

The partnership and the service-cum-rental arrangement hereby constituted shall commence on a [Commencement Date] and shall continue for a fixed duration of [Duration of Agreement, e.g., 2 years].

[Commencement Date] and shall continue for a fixed duration of [Duration of Agreement, e.g., 3 Years] (hereinafter referred to as the "Term"), unless terminated earlier in accordance with the provisions of this Agreement or by mutual consent of the Partners in writing.

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3. PARTNERSHIP BUSINESS AND OBJECTS

The business of the partnership firm shall be [Detailed Description of Business Activities], and such allied business activities as the Partners may mutually agree upon from time to time.

4. CAPITAL CONTRIBUTION AND PROFIT SHARING

The initial capital of the partnership firm shall be a total sum of **Rs. [Total Capital Amount]/- (Rupees [Capital Amount in Words] only)**. The First Partner shall contribute [Percentage, e.g., 50]% and the Second Partner shall contribute [Percentage, e.g., 50]% of the initial capital. The net profits and losses of the partnership firm shall be shared between the Partners in the ratio of [Profit Sharing Ratio, e.g., 50:50].

5. RENTAL AND SERVICE CHARGES

In consideration of the First Partner providing the Premises at **MBC 2** for the operations of the partnership firm and rendering administrative, maintenance, and utility services, the partnership firm shall pay to the First Partner a monthly composite rental and service fee of **Rs. [Exact Amount in Dispute/Rental Amount in Words] (Rupees [Rental Amount in Words] only)**. This amount shall be payable on or before the [Day, e.g., 10] of each succeeding English calendar month.

6. OBLIGATIONS OF THE FIRST PARTNER (SERVICE PROVIDER)

The First Partner shall ensure that the Premises at MBC 2 is kept in good, tenantable condition and shall provide uninterrupted access to the designated workspace, electricity, water, internet connectivity, and basic housekeeping services as required for the smooth functioning of the partnership business.

7. OBLIGATIONS OF THE SECOND PARTNER

The Second Partner shall diligently attend to the business of the partnership, maintain true and correct accounts of all transactions, and ensure that the Premises at MBC 2 is utilized solely for the authorized business activities of the partnership firm and not for any illegal or unauthorized purposes.

8. TERMINATION AND DISSOLUTION

This Agreement and the partnership herein may be dissolved or terminated by either Partner by giving [Notice Period, e.g., 3 Months] written notice to the other Partner. Upon dissolution of the partnership, the First Partner shall resume exclusive possession of the Premises at MBC 2, and all assets, liabilities, and profits of the firm shall be liquidated and distributed in accordance with the Indian Partnership Act, 1932.

9. INDEMNITY

Each Partner shall indemnify and keep indemnified the other Partner and the partnership firm against all losses, claims, damages, liabilities, or expenses arising out of any willful neglect, fraud, breach of contract, or any other act or omission of the Partner.

violation of any terms of this Agreement by such Partner.

10. GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by, interpreted, and construed in accordance with the laws of India. Any dispute, controversy, or claim arising out of or relating to this Agreement, including its validity, invalidity, breach, or termination, shall be subject to the exclusive jurisdiction of the courts located at **[Name of City/District, e.g., Thane/Mumbai]**.

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11. ARBITRATION

Any dispute or difference arising between the Partners regarding the interpretation of any clause of this Agreement, or the rights and liabilities of the Partners, shall be referred to a sole Arbitrator to be mutually appointed by the Partners. The arbitration proceedings shall be conducted in accordance with the Arbitration and Conciliation Act, 1996, and the venue of arbitration shall be **[City of Arbitration]**.

12. MISCELLANEOUS

No modification, amendment, or waiver of any provision of this Agreement shall be valid or binding unless it is made in writing and signed by both Partners. This Agreement constitutes the entire understanding between the Partners concerning the subject matter hereof and supersedes all prior discussions, negotiations, and agreements.

IN WITNESS WHEREOF, the Partners hereto have executed and delivered this Partnership and Service cum-Rental Agreement on the day, month, and year first above written.

SIGNED AND DELIVERED BY:

MR. PREET

(First Partner / Service Provider)

SIGNED AND DELIVERED BY:

[Full Legal Name of the Second Partner]

(Second Partner)

IN THE PRESENCE OF WITNESSES:

1. WITNESS ONE:

Signature: _____

Name: [Full Name of Witness 1]

Address: [Address of Witness 1]

2. WITNESS TWO:

Signature: _____

Name: [Full Name of Witness 2]

Address: [Address of Witness 2]